

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-07

Impact Products, LLC *et al.* v. CMA CGM S.A.

**RESPONDENT CMA CGM S.A.’S
MOTION FOR LEAVE TO FILE REPLY IN SUPPORT OF ITS
MOTION TO EXCLUDE EXPERT OPINION OF JOHN D. MCCOWN**

Respondent CMA CGM S.A. (“Respondent” or “CMA”), by counsel, pursuant to 46 CFR § 502.71(c), respectfully requests leave to file a Reply in support of its Motion to Exclude the Expert Opinion of John D. McCown, and states as follows for the “extraordinary circumstances” required under 46 CFR § 502.71(c). A copy of the proposed Reply is attached as **Exhibit 1**.

1. First, as more fully explained in the proposed Reply, Complainant’s Opposition was filed 5 days late, without good cause, and should not be accepted under 46 CFR § 502.71(b).

2. Second, as more fully explained in the proposed Reply, Complainants inaccurately describe their own expert’s report, leading them to mistakenly contend that the report discloses the “basis and reasons” for his opinion, including “facts and data,” when it does neither. Without the clarification of a Reply, Complainants’ descriptions create undue risk of error as the Commission applies 46 CFR § 502.141(d)(2)(i-ii).

3. Third, as more fully explained in the proposed Reply, Complainants erroneously contend that the flaws in their disclosure can be cured by CMA taking Mr. McCown’s deposition, which CMA is not required to do. In fact, as set forth in the Reply, courts consistently reject that argument, as it attempts to shift the burden of a deficient disclosure to the other party.

4. Finally, as more fully explained in the proposed Reply, Complainants incorrectly argue that CMA ignored procedural requirements by not conferring with them prior to filing. Without the clarification of a Reply, the Commission risks adopting this erroneous argument when, in fact, CMA sent a letter to Complainants asking them for evidence that the Bankruptcy Court has authorized prosecution of this case and the appointment of their counsel, without which no conference is required. *See* 11 U.S.C. § 327, § 329, and § 1107. Complainants never responded, and CMA should not be expected to withhold its filings waiting for an answer.

CONCLUSION

For all these reasons, extraordinary circumstances exist, and CMA respectfully requests that this Commission accept and file its Reply in the form attached as **Exhibit 1**.

Dated: September 19, 2024

Respectfully submitted,

/s/ K. Barrett Luxhoj

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CERTIFICATE OF SERVICE

I certify that on the 19th day of September 2024, a true copy of the foregoing was served by electronic mail on all counsel of record as follows:

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